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Case Number: 26TRCV01474 Hearing Date: July 6, 2026 Dept: P

Demurrer and Motion to Strike

Moving Party: Defendant Farmers Insurance Exchange

Responding Party: None

RULING

The court considered the moving papers. Defendant's Demurrer to Plaintiff's complaint is SUSTAINED without leave to amend, and Defendant's Motion to Strike is GRANTED in its entirety with leave to amend.

PROCEDURAL BACKGROUND

On April 22, 2026, Plaintiff Precious Evans ("Plaintiff") filed a complaint against Defendant Farmers Insurance Exchange ("Defendant"), alleging a single cause of action for Motor Vehicle.

On June 1, 2026, Defendant filed the instant demurrer and motion to strike. On June 24, 2026, Defendant filed a Notice of Non-Opposition.

FACTUAL BACKGROUND

Plaintiff alleges that on July 6, 2025, an incident occurred at the intersection of Alameda Street and Town Center Drive in Los Angeles, California. (Complaint, p. 4.) Plaintiff alleges that Defendant is liable as the "insurance carriers for Plaintiff's uninsured/underinsured motorist coverage, and have not made offers to make Plaintiff whole." (Complaint, p. 4.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and

will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khouri v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Defendant argues that Plaintiff's cause of action for Motor Vehicle fails to state sufficient facts to constitute a cause of action against Defendant and that the court lacks authority to adjudicate Plaintiff's cause of action because liability and damages arising from an uninsured motorist accident are subject to mandatory arbitration pursuant to Insurance Code Section 11580.2. Defendant argues that Plaintiff was covered by an insurance policy issued by Defendant that includes uninsured motorist coverage and contains a mandatory arbitration provision.

Defendant moves to strike any references in Plaintiff's complaint pertaining to uninsured motorist coverage. Defendant argues that Plaintiff improperly alleges an uninsured motorist claim sounding in negligence.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. Section 430.41(a).)

Here, Defendant's counsel declares that she sent a meet and confer letter to Plaintiff's counsel on May 22, 2026 and subsequently called Plaintiff's counsel's office on May 28, 2026 to request to meet and confer. (Thomas Decl., ¶¶ 5-6.) Defendant's counsel declares that she has not received a response. (Thomas Decl., ¶ 7.)

Therefore, the court finds that the meet and confer requirements have not been satisfied. However, the court will still discuss the merits of Defendant's demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B. Motor Vehicle Cause of Action

Plaintiff has alleged a single cause of action for Motor Vehicle against Defendant alone. The court notes that Plaintiff has not named any other driver allegedly involved in the incident as a defendant.

Insurance Code Section 11580.2(i)(1) provides that "[n]o cause of action shall accrue to the insured under any policy or endorsement provision issued pursuant to this section unless one of the following actions have been taken within two years from the date of the accident:

(A) Suit for bodily injury has been filed against the uninsured motorist, in a court of competent jurisdiction.

(B) Agreement as to the amount due under the policy has been concluded.

(C) The insured has formally instituted arbitration proceedings by notifying the insurer in writing sent by certified mail, return receipt requested. Notice shall be sent to the insurer or to the agent for process designated by the insurer filed with the department."

(Ins. Code Section 11580.2(i)(1).)

Here, Plaintiff has not filed a suit against any allegedly uninsured motorists, and Plaintiff has not attached a copy of Plaintiff's insurance policy to the complaint. Plaintiff does not allege that arbitration proceedings have been instituted.

The court finds that Plaintiff is improperly alleging that Defendant, Plaintiff's insurance carrier, was negligent and caused Plaintiff's injuries rather than directing Plaintiff's cause of action for Motor Vehicle against those who allegedly operated the motor vehicle(s) involved in the incident. (Complaint, p. 4.)

Accordingly, Defendant's Demurrer to Plaintiff's complaint is SUSTAINED.

C. Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Defendant moves to strike Plaintiff's cause of action for Motor Vehicle and specifically identifies paragraphs 10 and 11, Plaintiff's prayer for relief, and sections MV-1 and MV-2 of Plaintiff's complaint.

The court has previously found that Plaintiff's Motor Vehicle cause of action is improperly alleged against Defendant.

Accordingly, Defendant's Motion to Strike is GRANTED in its entirety.

D. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.")) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court finds that there is no reasonable possibility of Plaintiff successfully amending her complaint, and notes that Plaintiff did not oppose the demurrer to show that amendment is possible. Therefore, the court DENIES Plaintiff leave to amend her complaint.

CONCLUSION

Based on the foregoing, Defendant's Demurrer to Plaintiff's complaint is SUSTAINED without leave to amend, and Defendant's Motion to Strike is GRANTED in its entirety without leave to amend.

Moving party is ordered to give notice of ruling.